

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 94283-0001

JUN 28 2018

Honorable Jack P. Hunt
Judge of the Superior Court
County of Los Angeles
400 Civic Center Plaza
Pomona, CA 94766-3201



Re: Alatorre, Antonio Marco
CDC No.: G06472
Case No.: KA077015-02
Date of Sentence: January 24, 2008

Dear Honorable Jack P. Hunt:

The purpose of this letter is to provide the court with authority to resentence Antonio Marco Alatorre pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Alatorre was sentenced in 2008, and was convicted of section 245, subdivision (A)(1), Assault with a deadly weapon. The trial court sentenced inmate Alatorre on January 24, 2008. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Alatorre's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Alatorre's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Information

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Private Attorney

606472

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

606472
FILED
JAN 25 2008
JOHN A. CLARKE, CLERK
BY VALENCIA JASPER, DEPUTY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: **LOS ANGELES-EAST, DISTRICT-POMONA SOUTH**

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: **02: ALATORRE, MARCO ANTONIO** DOB: **01-01-76** CASE NUMBER **KA077015-02**

AKA:
CII NO.: **A09728325**
BOOKING NO.: **9278855** ☐ NOT PRESENT

COMMITMENT TO STATE PRISON
ABSTRACT OF JUDGMENT ☐ AMENDED
ABSTRACT

DATE OF HEARING **01-24-08** DEPT. NO. **EAST - N** JUDGE **JACK P. HUNT**

CLERK **MARK NATOLI** REPORTER **JACQUELINE HALL** PROBATION NO. OR PROBATION OFFICER **X1593070** ☐ IMMEDIATE SENTENCING

COUNSEL FOR PEOPLE **ROBERT SERNA (DA)** COUNSEL FOR DEFENDANT **F. RAYFORD FOUNTAIN (PVT)** ☐ APPTD.

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY	TERM (L, M, U)	TIME IMPOSED
05	PC	245(A)(1)	ASSAULT WITH A DEADLY WEAPON	2006	01-24-08	JURY COURT PLEA	X M	3 YRS. 0 MOS.

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
06	186.22(B)(1)(C)	10	12022.7(A)	3			13 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
						0 0

4. ☐ Deft. sentenced per: ☐ PC 667(b)-(i) or PC 1170.12 (two strikes) ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. (Paper Commitment.) Deft. ordered to report to local Parole Office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments): ☐ Court Security Fee of \$ 20.00 per PC 1465.8.

Restitution Fine(s): \$ 200.00 per PC 1202.4(b) forthwith per PC 2085.5; \$200.00 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC 1202.4(f): ☒ \$6,082.00 / ☐ Amount to be determined to ☐ victim(s)* ☒ Restitution Fund
☐ *Victim name(s), if known, and amount breakdown in item 8 below. ☐ *Victim name(s) in probation officer's report.

Fine(s): \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

TESTING: a. ☐ Compliance with PC 296 verified b. ☒ DNA per PC 296 c. ☐ AIDS per PC 1202.1 d. ☐ other (specify): _____

6. IMMEDIATE SENTENCE: ☐ Probation to prepare and submit a post-sentence report to CDCR per PC 1203c. Deft's Race/Nat'l Origin HIS

7. Other orders (specify):

- *PAYABLE TO THE STATE VICTIM COMPENSATION BOARD. LIABILITY IS JOINT AND SEVERAL WITH THE CO-DEFENDANT, MICHAEL ELIZADE.
- THE DEFENDANT IS ORDERED TO REGISTER AS A GANG MEMBER (PURSUANT TO PENAL CODE SECTION 186.30 AND 186.32) WITH THE LOCAL LAW ENFORCEMENT AGENCY WITHIN 30 DAYS OF HIS RELEASE FROM CUSTODY.
- THE COURT RECOMMENDS THAT THE DEFENDANT BE HOUSED IN SOUTHERN CALIFORNIA

9. TOTAL TIME IMPOSED EXCLUDING COUNTY JAIL TERM:

13 0

10. ☐ This sentence is to run concurrent with (specify):

11. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify):

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY	TOTAL DAYS INCLUDING:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION:	DMH	CDCR	CRC
01-24-08		509	443	66	4019 2933.1			

13. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ Other (specify):

CLERK OF THE COURT: I hereby certify the foregoing to be as presented to the court and made in this action.

DEPUTY'S SIGNATURE **VALENCIA JASPER** **01-25-08**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213.5. Attachments may be used but must be referred to in this document.

FEB 0 8 2008

MINUTE ORDER
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

DATE PRINTED: 01/25/08

CASE NO. KA077015

THE PEOPLE OF THE STATE OF CALIFORNIA
VS.
DEFENDANT 02: MARCO ANTONIO ALATORRE

INFORMATION FILED ON 01/10/07.

COUNT 01: 664-187(A) PC FEL - ATTEMPTED MURDER.
COUNT 03: 203 PC FEL - MAYHEM.
COUNT 04: 245(B) PC FEL - ADW SEMIAUTOMATIC FIREARM.
COUNT 05: 245(A)(1) PC FEL - ASSAULT W DEADLY WEAPON/INSTR..

ON 01/24/08 AT 830 AM IN EAST DISTRICT DEPT EAN

CASE CALLED FOR JURY TRIAL

PARTIES: JACK P. HUNT (JUDGE) MARK NATOLI (CLERK)
JACQUELINE HALL (REP) ROBERT SERNA (DA)

DEFENDANT IS PRESENT IN COURT, AND REPRESENTED BY F. RAYFORD FOUNTAIN PRIVATE
COUNSEL

DEFENDANT ADVISED OF AND PERSONALLY AND EXPLICITLY WAIVES THE FOLLOWING RIGHTS:

WRITTEN ADVISEMENT OF RIGHTS AND WAIVERS FILED, INCORPORATED BY REFERENCE
HEREIN

TRIAL BY COURT AND TRIAL BY JURY

CONFRONTATION AND CROSS-EXAMINATION OF WITNESSES;

SUBPOENA OF WITNESSES INTO COURT TO TESTIFY IN YOUR DEFENSE;

AGAINST SELF-INCRIMINATION;

DEFENDANT ADVISED OF THE FOLLOWING:

THE NATURE OF THE CHARGES AGAINST HIM, THE ELEMENT OF THE OFFENSE IN THE
INFORMATION AND POSSIBLE DEFENSES TO SUCH CHARGES;

THE POSSIBLE CONSEQUENCES OF A PLEA OF GUILTY OR NOLO CONTENDERE, INCLUDING THE
MAXIMUM PENALTY AND ADMINISTRATIVE SANCTIONS AND THE POSSIBLE LEGAL EFFECTS
AND MAXIMUM PENALTIES INCIDENT TO SUBSEQUENT CONVICTIONS FOR THE SAME OR
SIMILAR OFFENSES;

CASE NO. KA077015
DEF NO. 02

DATE PRINTED 01/25/08

THE EFFECTS OF PROBATION;

IF YOU ARE NOT A CITIZEN, YOU ARE HEREBY ADVISED THAT A CONVICTION OF THE OFFENSE FOR WHICH YOU HAVE BEEN CHARGED WILL HAVE THE CONSEQUENCES OF DEPORTATION, EXCLUSION FROM ADMISSION TO THE UNITED STATES, OR DENIAL OF NATURALIZATION PURSUANT TO THE LAWS OF THE UNITED STATES;

COUNSEL FOR THE DEFENDANT JOINS IN THE WAIVERS AND CONCURS IN THE PLEA.

COURT FINDS THAT EACH SUCH WAIVER IS KNOWINGLY, UNDERSTANDINGLY, AND EXPLICITLY MADE;

THE DEFENDANT PERSONALLY WITHDRAWS PLEA OF NOT GUILTY TO COUNT 05 AND PLEADS NOLO CONTENDERE WITH THE APPROVAL OF THE COURT TO A VIOLATION OF SECTION 245(A)(1) PC IN COUNT 05. THE COURT FINDS THE DEFENDANT GUILTY.

COUNT (05) : DISPOSITION: CONVICTED

COURT ORDERS AND FINDINGS:

-COPY OF THE PROHIBITED PERSONS NOTICE AND POWER OF ATTORNEY FOR FIREARMS RELINQUISHMENT, SALE OR DISPOSAL FORM ISSUED TO THE DEFENDANT PURSUANT TO PENAL CODE SECTION 12021(D)(2).

COURT FINDS THAT THERE IS A FACTUAL BASIS FOR DEFENDANT'S PLEA, AND COURT ACCEPTS PLEA.

THE DEFENDANT ADMITS THE ALLEGATIONS IN COUNT FIVE PURSUANT TO PENAL CODE SECTIONS 186.22(B)(1)(C) AND 12022.7(A). ALL REMAINING ALLEGATIONS ARE STRICKEN ON MOTION OF THE PEOPLE PURSUANT TO THE CASE SETTLEMENT AGREEMENT.

THE DEFENDANT WAIVES FURTHER PROBATION REFERRAL AND REQUESTS IMMEDIATE SENTENCING. A PROBATION REPORT IS READ, CONSIDERED

AND FILED THIS DATE.

THE DEFENDANT ADMITS TO A FACTUAL BASIS FOR HIS PLEA OF NO CONTEST IN RESPONSE TO QUESTIONING BY THE PEOPLE, AS FULLY REFLECTED IN THE NOTES OF THE OFFICIAL COURT REPORTER.

NEXT SCHEDULED EVENT:

UPON MOTION OF DEFENDANT
SENTENCING

DEFENDANT WAIVES ARRAIGNMENT FOR JUDGMENT AND STATES THERE IS NO LEGAL CAUSE WHY SENTENCE SHOULD NOT BE PRONOUNCED. THE COURT ORDERED THE FOLLOWING JUDGMENT:

IMPRISONED IN STATE PRISON FOR A TOTAL OF 16 YEARS

AS TO THE BASE COUNT (05):

COURT ORDERS PROBATION DENIED.

PAGE NO. 2

JURY TRIAL
HEARING DATE: 01/24/08

CASE NO. KA077015
DEF NO. 02

DATE PRINTED 01/25/08

SERVE 16 YEARS IN ANY STATE PRISON

COURT SELECTS THE MID TERM OF 3 YEARS AS TO THE BASE TERM COUNT 05.

PLUS 13 YEARS PURSUANT TO SECTION SEE COMMENTS

DEFENDANT GIVEN TOTAL CREDIT FOR 509 DAYS IN CUSTODY 443 DAYS ACTUAL CUSTODY
AND 66 DAYS GOOD TIME/WORK TIME

FORTHWITH

COMMITMENT ISSUED

IN ADDITION:

-THE DEFENDANT IS TO PAY A RESTITUTION FINE PURSUANT TO SECTION
1202.4(B) PENAL CODE IN THE AMOUNT OF \$ 200. A \$20 COURT
SECURITY FINE IS IMPOSED PURSUANT TO PENAL CODE SECTION
1465.8(A)(1).

-DEFENDANT IS TO PAY A PAROLE RESTITUTION FINE, PURSUANT TO PENAL
CODE SECTION 1202.45, IN THE AMOUNT OF \$ 200. SAID FINE IS
STAYED AND THE STAY IS TO BECOME PERMANENT UPON SUCCESSFUL
COMPLETION OF PAROLE. . ALL FINES ARE TO BE COLLECTED BY THE
DEPARTMENT OF CORRECTIONS AND REHABILITATION (INCLUDING
RESTITUTION TO THE VICTIM).

-DEFENDANT IS TO MAKE RESTITUTION TO THE VICTIM PURSUANT TO
PENAL CODE SECTION 1202.4(F), IN THE AMOUNT OF\$ \$6,082.00,
PAYABLE TO THE STATE VICTIM COMPENSATION BOARD. LIABILITY IS
JOINT AND SEVERAL WITH THE CO-DEFENDANT, MICHAEL ELIZALDE.
AN ORDER FOR RESTITUTION AND ABSTRACT OF JUDGMENT IS SIGNED AND
FILED THIS DATE.

COURT ORDERS AND FINDINGS:

-PURSUANT TO PC SECTION 296, THE DEFENDANT IS ORDERED TO PROVIDE
BUCCAL SWAB SAMPLES, A RIGHT THUMB PRINT, A FULL PALM PRINT
IMPRESSION OF EACH HAND, ANY BLOOD SPECIMENS OR OTHER BIOLOGICAL
SAMPLES AS REQUIRED BY THIS SECTION FOR LAW ENFORCEMENT
IDENTIFICATION.

THE DEFENDANT IS SENTENCED TO AN ADDITIONAL TEN YEARS IN STATE
PRISON PURSUANT TO PENAL CODE SECTION 186.22(B)(1)(C), PLUS AN
AN ADDITIONAL THREE YEARS PURSUANT TO PENAL CODE SECTION
12022.7(A). THE DEFENDANT IS ORDERED TO REGISTER AS A GANG
MEMBER (PURSUANT TO PENAL CODE SECTIONS 186.30 AND 186.32)
WITH HIS LOCAL LAW ENFORCEMENT AGENCY WITHIN 30 DAYS OF HIS
RELEASE FROM CUSTODY.

THE COURT RECOMMENDS THAT THE DEFENDANT BE HOUSED IN SOUTHERN

CASE NO. KA077015
DEF NO. 02

DATE PRINTED 01/25/08

CALIFORNIA.

COUNT (05): DISPOSITION: CONVICTED

REMAINING COUNTS DISMISSED:

COUNT (01): DISMISSED DUE TO PLEA NEGOTIATION
COUNT (03): DISMISSED DUE TO PLEA NEGOTIATION
COUNT (04): DISMISSED DUE TO PLEA NEGOTIATION

DMV ABSTRACT NOT REQUIRED

NEXT SCHEDULED EVENT:

UPON MOTION OF COURT
PROCEEDINGS TERMINATED

01/25/08

I HEREBY CERTIFY THIS TO BE A TRUE AND CORRECT COPY OF THE ELECTRONIC MINUTE
ORDER ON FILE IN THIS OFFICE AS OF THE ABOVE DATE.

JOHN A. CLARKE , EXECUTIVE OFFICER/CLERK OF SUPERIOR COURT, COUNTY OF LOS
ANGELES, STATE OF CALIFORNIA

BY *Valencia Lopez*, DEPUTY



SUPERIOR COURT OF THE STATE OF CALIFORNIA
FOR THE COUNTY OF LOS ANGELES

THE PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff,

v.

02 MARCO ANTONIO ALATORRE (01/01/1976) (Bk#
9278855), and

03 MICHAEL JOSEPH ELIZALDE (05/20/1980) (Bk#
9278939)

Defendant(s).

CASE NO. KA077015

AMENDED
INFORMATION

JURY TRIAL

Date: 04/23/2007

Department: EA

FILED
LOS ANGELES SUPERIOR COURT

APR 19 2007

JOHN A. CLARKE, CLERK
M. Natoli
T. NATOLI, DEPUTY

**INFORMATION
SUMMARY**

<u>Ct. No.</u>	<u>Charge</u>	<u>Charge Range</u>	<u>Defendant</u>	<u>Special Allegation</u>	<u>Alleg. Effect</u>
1	PC 664/187(A)	Life	ALATORRE, MARCO ANTONIO	PC 12022.53(D) PC 1203(E)(4) PC 12022.53(B) PC 186.22(B)(4) PC 12022.53(C)	+25Y-Life, MSP* PSP +10 Yrs, MSP* Life +20 Yrs, MSP*
			ELIZALDE, MICHAEL JOSEPH	PC 1170.12(A)-(D) PC 667(A)(1) PC 186.22(B)(4) PC 12022.53(B) PC 12022.53(D) PC 12022.53(C)	MSP Check Code +5 yrs per prior Life +10 Yrs, MSP* +25Y-Life, MSP* +20 Yrs, MSP*
2	PC 664/187(A)	Life	ALATORRE, MARCO ANTONIO	PC 12022.53(D) PC 1203(E)(4) PC 186.22(B)(4) PC 12022.53(B) PC 12022.53(C)	+25Y-Life, MSP* PSP Life +10 Yrs, MSP* +20 Yrs, MSP*
			ELIZALDE, MICHAEL JOSEPH	PC 12022.53(B) PC 1170.12(A)-(D) PC 12022.53(D) PC 186.22(B)(4) PC 667(A)(1) PC 12022.53(C)	+10 Yrs, MSP* MSP Check Code +25Y-Life, MSP* Life +5 yrs per prior +20 Yrs, MSP*
3	PC 203	2-4-8	ALATORRE, MARCO ANTONIO	PC 12022.53(D) PC 1203(E)(4) PC 186.22(B)(4) PC 12022.53(B) PC 12022.53(C)	+25Y-Life, MSP* PSP Life +10 Yrs, MSP* +20 Yrs, MSP*
			ELIZALDE, MICHAEL JOSEPH	PC 12022.53(B) PC 667(A)(1) PC 1170.12(A)-(D) PC 186.22(B)(4) PC 12022.53(D) PC 12022.53(C)	+10 Yrs, MSP* +5 yrs per prior MSP Check Code Life +25Y-Life, MSP* +20 Yrs, MSP*
4	PC 245(B)	3,6,9+3,4,10	ALATORRE, MARCO ANTONIO	PC 186.22(B)(1)(B)	+5 Yrs.
		-	ELIZALDE, MICHAEL JOSEPH	PC 186.22(B)(1)(B)	+5 Yrs.
5	PC 245(A)(1)	2-3-4	ALATORRE, MARCO ANTONIO	PC 186.22(B)(1)(B) PC 186.22(B)(1)(C) PC 12022.7(A)	+5 Yrs. +10 Yrs. +3 Yrs
6	PC 245(A)(1)	2-3-4	ELIZALDE, MICHAEL JOSEPH	PC 186.22(B)(1)(B)	+5 Yrs.

The District Attorney of the County of Los Angeles, by this Information alleges that:

COUNT 1

On or about November 1, 2006, in the County of Los Angeles, the crime of ATTEMPTED WILLFUL, DELIBERATE, PREMEDITATED MURDER, in violation of PENAL CODE SECTION 664/187(a), a Felony, was committed by MARCO ANTONIO ALATORRE and MICHAEL JOSEPH ELIZALDE, who did unlawfully and with malice aforethought attempt to murder JOSE ACEVEDO, a human being .

It is further alleged that the aforesaid attempted murder was committed willfully, deliberately and with premeditation within the meaning of Penal Code section 664(a) and is a serious felony pursuant to Penal Code section 1192.7(c).

* * * * *

COUNT 2

On or about November 1, 2006, in the County of Los Angeles, the crime of ATTEMPTED WILLFUL, DELIBERATE, PREMEDITATED MURDER, in violation of PENAL CODE SECTION 664/187(a), a Felony, was committed by MARCO ANTONIO ALATORRE and MICHAEL JOSEPH ELIZALDE, who did unlawfully and with malice aforethought attempt to murder SAMANTHA ARLINE COHEN, a human being .

It is further alleged that the aforesaid attempted murder was committed willfully, deliberately and with premeditation within the meaning of Penal Code section 664(a) and is a serious felony pursuant to Penal Code section 1192.7(c).

* * * * *

COUNT 3

On or about November 1, 2006, in the County of Los Angeles, the crime of MAYHEM, in violation of PENAL CODE SECTION 203, a Felony, was committed by MARCO ANTONIO ALATORRE and MICHAEL JOSEPH ELIZALDE, who did unlawfully and maliciously deprive JOSE ACEVEDO of a member of the body and did disable, disfigure and render it useless and did cut and disable the tongue, and put out an eye and slit the nose, ear and lip of said person. "NOTICE: The above offense is a serious felony within the meaning of Penal Code Section 1192.7(c) and a violent felony within the meaning of Penal Code Section 667.5(c)."

It is further alleged as to count(s) 1, 2 and 3 that a principal personally used a firearm, a handgun , within the meaning of Penal Code section 12022.53(b) and (e)(1).

It is further alleged that the offense(s) charged in Count(s) 1,2, and 3 cause the sentencing to be pursuant to section 186.22(b)(4).

It is further alleged as to count(s) 1, 2 and 3 that a principal personally and intentionally discharged a firearm, a handgun , which proximately caused great bodily injury and death to JOSE ACEVEDO, SAMANTHA ARLINE COHEN within the meaning of Penal Code section 12022.53(d) and (e)(1).

It is further alleged that a principal personally and intentionally discharged a firearm, a handgun , within the meaning of Penal Code section 12022.53(c) and (e)(1).

It is further alleged that a principal personally used a firearm, a handgun , within the meaning of Penal Code sections 12022.53(b) and (e).

It is further alleged as to count(s) 1, 2 and 3 that a principal personally and intentionally discharged a firearm, a handgun , within the meaning of Penal Code section 12022.53(c) and (e)(1).

It is further alleged that a principal personally used a firearm, a handgun , within the meaning of Penal Code section 12022.53(b) and (e)(1).

* * * * *

'COUNT 4

On or about November 1, 2006, in the County of Los Angeles, the crime of ASSAULT WITH A SEMIAUTOMATIC FIREARM, in violation of PENAL CODE SECTION 245(b), a Felony, was committed by MARCO ANTONIO ALATORRE and MICHAEL JOSEPH ELIZALDE, who did willfully and unlawfully commit an assault upon SAMANTHA ARLINE COHEN with a semiautomatic firearm.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

* * * * *

COUNT 5

On or about November 1, 2006, in the County of Los Angeles, the crime of ASSAULT WITH A DEADLY WEAPON, in violation of PENAL CODE SECTION 245(a)(1), a Felony, was committed by MARCO ANTONIO ALATORRE, who did willfully and unlawfully commit an assault upon JOSE ACEVEDO with a deadly weapon, to wit, BEER MUG.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

It is further alleged pursuant to Penal Code section 186.22(b)(1)(C) that the above offense was committed for the benefit of, at the direction of, and in association with a criminal street gang with the specific intent to promote, further and assist in criminal conduct by gang members.

It is further alleged that in the commission of the above offense the said defendant(s), MARCO ANTONIO ALATORRE, personally inflicted great bodily injury upon JOSE ACEVEDO, not an accomplice to the above offense, within the meaning of Penal Code Section 12022.7(a) and also causing the above offense to become a serious felony within the meaning of Penal Code Section 1192.7(c)(8).

* * * * *

'COUNT' 6

On or about November 1, 2006, in the County of Los Angeles, the crime of ASSAULT WITH A DEADLY WEAPON, in violation of PENAL CODE SECTION 245(a)(1), a Felony, was committed by MICHAEL JOSEPH ELIZALDE, who did willfully and unlawfully commit an assault upon JOSE ACEVEDO with a deadly weapon, to wit, POOL CUE.

"NOTICE: The above offense is a serious felony within the meaning of Penal Code section 1192.7(c)."

It is further alleged pursuant to Penal Code section 186.22(b)(1)(B) as to count(s) 4, 5 and 6 that the above offense was committed for the benefit of, at the direction of, and in association with a criminal street gang with the specific intent to promote, further and assist in criminal conduct by gang members.

* * * * *

It is further alleged as to count(s) 1, 2 and 3 that said defendant(s), MARCO ANTONIO ALATORRE, was convicted of the following felonies, within the meaning of Penal Code section 1203(e)(4):

<u>Case No.</u>	<u>Charge Code/Statute</u>	<u>Conv. Date</u>	<u>County of Court</u>	<u>State</u>	<u>Court Type</u>
KA030654	HS11350(a)	02/20/1996	Los Angeles	CA	Superior
GA046589	HS11379(a)	10/11/2001	Los Angeles	CA	Superior

It is further alleged pursuant to Penal Code sections 1170.12(a) through (d) and 667(b) through (i) as to count(s) 1, 2 and 3 that said defendant(s), MICHAEL JOSEPH ELIZALDE, has suffered the following prior conviction of a serious or violent felony or juvenile adjudication:

<u>Case No.</u>	<u>Charge Code/Statute</u>	<u>Conv. Date</u>	<u>County of Court</u>	<u>State</u>	<u>Court Type</u>
GA043242	PC664-211	09/26/2000	Los Angeles	CA	Superior

It is further alleged as to count(s) 1, 2 and 3 pursuant to Penal Code section 667(a)(1) that the defendant(s), MICHAEL JOSEPH ELIZALDE, has suffered the following prior conviction(s) of a serious felony:

<u>Case No.</u>	<u>Charge Code/Statute</u>	<u>Conv. Date</u>	<u>County of Court</u>	<u>State</u>	<u>Court Type</u>
GA043242	PC664-211	09/26/2000	Los Angeles	CA	Superior

NOTICE: Conviction of this offense will require the defendant to provide DNA samples and print impressions pursuant to Penal Code sections 296 and 296.1. Willful refusal to provide the samples and impressions is a crime.

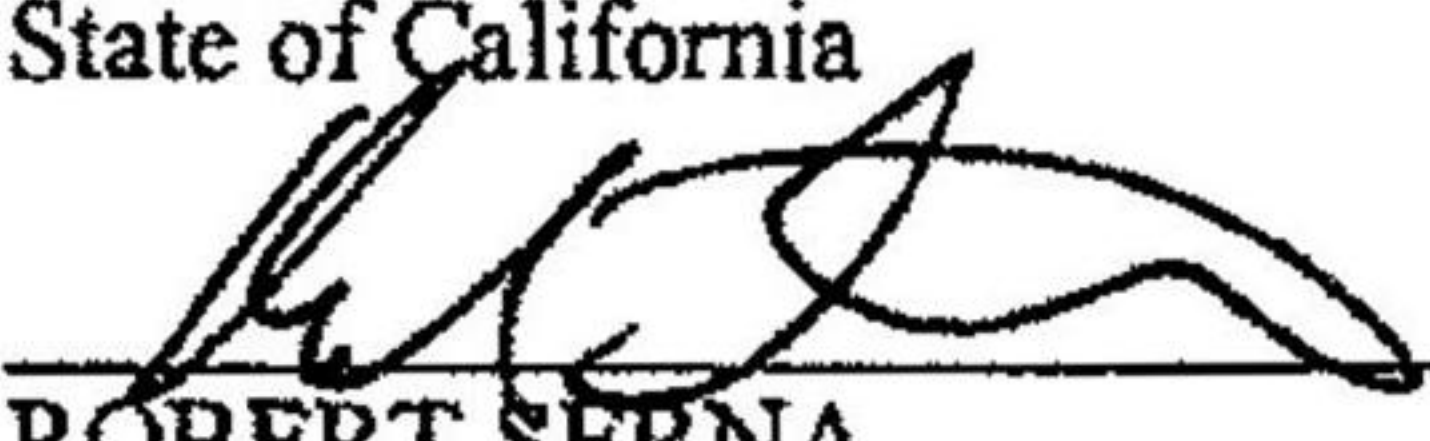
THIS INFORMATION CONSISTS OF 6 COUNT(S).

Filed in Superior Court,
County of Los Angeles

DATED: _____

STEVE COOLEY
DISTRICT ATTORNEY
County of Los Angeles,
State of California

BY: _____


ROBERT SERNA
DEPUTY DISTRICT ATTORNEY

/GO

Pursuant to Penal Code Section 1054.5(b), the People are hereby informally requesting that defense counsel provide discovery to the People as required by Penal Code Section 1054.3.